



FLIP THROUGH BEFORE YOU DOWNLOAD

# What You Can Borrow

Three real pages, straight off the shipping files,  
plus everything the full download includes.



## Three things the Copyright Office actually says

### 1 • Rules and systems are not protected. Expression is.

Copyright does not protect "ideas, methods, systems, procedures, processes, concepts, principles, discoveries, or devices" — and game rules and mechanics sit inside that list. That is Circular 33, *Works Not Protected by Copyright*.

So the *mechanic* is open. A rulebook's actual sentences, the board art, the character designs and the music are **expression**, and those are protected. **This one distinction settles most of what a teacher wants to know.**

### 2 • Names and short phrases are not copyrighted — but they may be trademarks

The Copyright Office is blunt: "Copyright does not protect names, titles, slogans, or short phrases." It then adds the part people miss: "In some cases, these things may be protected as trademarks."

**That is a different law, and it is the one that actually catches teachers.** Putting a famous character's name or a logo on your game is a trademark problem even though the name itself carries no copyright. **Use your own names** and the question never arises.

### 3 • "It is for school" is not a free pass

Fair use is real and education helps, but the Copyright Office says courts "evaluate fair use claims on a case-by-case basis" and that "there is no formula to ensure that a predetermined percentage or amount of a work — or specific number of words, lines, pages, copies — may be used without permission."

And directly: courts are more likely to find nonprofit educational use fair, "This does not mean, however, that all nonprofit education and noncommercial uses are fair." There is no ten-percent rule and there never was.

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### Why this is good news rather than bad.

The thing you actually want — a game that *plays* like the one they love — is the part that was never protected. **You do not need permission to build a game where answering right opens a locked door.** You need your own words and your own pictures on top of it.

## Free to borrow, and never

| Take it – this is the system                     | Leave it – this is somebody's expression                 |
|--------------------------------------------------|----------------------------------------------------------|
| Turn-based battles where each side acts in order | Their creatures, their names, their cries, their designs |
| Collecting things and building a team from them  | The actual roster, the types, the type chart as written  |
| Locked doors that open with a code you earn      | Their room art, their puzzle text, their voice lines     |
| A health bar, lives, a timer, a streak counter   | Their interface, their fonts, their sound effects        |
| Leveling up, experience points, unlocking        | Their exact numbers copied out of a wiki                 |
| A map you travel across with choices at forks    | Their map, their place names, their music                |
| "It plays a bit like that game" as a description | Their title or logo anywhere on your thing               |

### The two-second test

Could you describe it to a colleague in two seconds? Naming the original? "Students collect creatures and battle with them" is a system and it is yours. "Students collect the yellow electric one" is somebody's character, and it is not.

### The three places teachers get caught, every time

**Images pulled from a search.** The single most common one. A picture on the internet is not free because it is on the internet.

**Fonts and sound effects.** Licensed like anything else, and the license usually says what you may do with them.

**The title.** A clever play on a famous game's name puts the famous name on your cover, which is the trademark question from page 2.

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## Seven checks, about four minutes

Run these on anything you are about to put in front of a class, hand to a colleague, or put on a school server. **Any "no" is a thing to change, not a reason to stop.**

### 1 Is every name in it mine?

Characters, places, items, the title. Search the file for the original's names and confirm zero hits. **This one check catches most of it.**

### 2 Did every picture come from somewhere I can name?

Drawn by me, made by the program, or from a source whose license I could point at. "Found it" is not a source.

### 3 Is every sentence in it written by me or by my class?

Not pasted from a wiki, a manual or another teacher's resource. Questions and answers included.

### 4 Would somebody think this IS the original?

Not "is it similar" — similar is fine. Would a person believe it came from that company? **If yes, change the look until they would not.**

### 5 Is there a logo anywhere?

Including in a screenshot, a background, or a font that is somebody's brand. Logos are the clearest trademark problem there is.

### 6 Am I giving it away for good?

Your own classroom is the easiest case. A shared drive is wider. A sale is a different question entirely and this page does not answer it.

### 7 Can I say in one sentence what is mine?

"The mechanic is a common one, and the words, pictures and code are mine." If you cannot say that, go back to check 1.

**Keep the answers.** Three lines in a file beside the game — where the pictures came from, who wrote the text, what the names are. **Five minutes now beats trying to remember in April** when somebody asks whether it can go on the school website.

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## WHAT IS INSIDE

# What You Can Borrow

- ✓ **The one line** that decides almost every case
- ✓ Three things the Copyright Office actually says, quoted
- ✓ **Two columns**: free to borrow, and never
- ✓ **Seven checks** to run before you share it
- ✓ What to do when AI hands you protected material
- ✓ A fill-in page so your own game is documented

Running it with your whole staff? Additional teacher licenses are just \$0, and we accept purchase orders through TpT for Schools.

